

Syllabus

claims challenge major elements of the Government’s response to the September 11 attacks, they necessarily require an inquiry into national-security issues. National-security policy, however, is the prerogative of Congress and the President, and courts are “reluctant to intrude upon” that authority absent congressional authorization. *Department of Navy v. Egan*, 484 U. S. 518, 530. Thus, Congress’ failure to provide a damages remedy might be more than mere oversight, and its silence might be more than “inadvertent.” *Schweiker v. Chilicky*, 487 U. S. 412, 423. That silence is also relevant and telling here, where Congress has had nearly 16 years to extend “the kind of remedies [sought by] respondents,” *id.*, at 426, but has not done so. Respondents also may have had available “‘other alternative forms of judicial relief,’” *Minneeci v. Pollard*, 565 U. S. 118, 124, including injunctions and habeas petitions.

The proper balance in situations like this, between deterring constitutional violations and freeing high officials to make the lawful decisions necessary to protect the Nation in times of great peril, is one for the Congress to undertake, not the Judiciary. The Second Circuit thus erred in allowing respondents’ detention policy claims to proceed under *Bivens*. Pp. 140–146.

3. The Second Circuit also erred in allowing the prisoner abuse claim against Warden Hasty to go forward without conducting the required special-factors analysis. Respondents’ prisoner abuse allegations against Warden Hasty state a plausible ground to find a constitutional violation should a *Bivens* remedy be implied. But the first question is whether the claim arises in a new *Bivens* context. This claim has significant parallels to *Carlson*, which extended *Bivens* to cover a failure to provide medical care to a prisoner, but this claim nevertheless seeks to extend *Carlson* to a new context. The constitutional right is different here: *Carlson* was predicated on the Eighth Amendment while this claim was predicated on the Fifth. The judicial guidance available to this warden with respect to his supervisory duties was less developed. There might have been alternative remedies available. And Congress did not provide a standalone damages remedy against federal jailers when it enacted the Prison Litigation Reform Act some 15 years after *Carlson*. Given this Court’s expressed caution about extending the *Bivens* remedy, this context must be regarded as a new one. Pp. 146–149.

4. Petitioners are entitled to qualified immunity with respect to respondents’ claims under 42 U. S. C. § 1985(3). Pp. 149–156.

(a) Assuming that respondents’ allegations are true and well pleaded, the question is whether a reasonable officer in petitioners’ position would have known the alleged conduct was an unlawful conspiracy. The qualified immunity inquiry turns on the “objective legal reasonable-